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Amending Acts

1. Act to Amend Certain Nepal Acts Relating to Education, 2077 2077.03.11
2. Act to Amend Certain Nepal Acts, 2082 2082.04.14

Act Number 3 of the Year 2073

An Act Made to Provide for Nepal Open University

Preamble: Whereas, it is expedient to make necessary provisions for the establishment and operation of Nepal Open University to produce manpower equipped with knowledge, skills, and technology by making higher education easily accessible to the general public through the provision of high-level study, teaching, and research in various subjects through the latest teaching methods and technology of the open education system,

Now, therefore, the Legislature-Parliament, pursuant to sub-section (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Nepal Open University Act, 2073."
- (2) This Act shall commence on the ninety-first day after its certification.
2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Study Center" means a study center pursuant to Section 16.
 - (b) "Base Center" means a base center pursuant to Section 15.
 - (c) "Vice-Chancellor" means the Vice-Chancellor pursuant to Section 18.
 - (d) "Executive Council" means the Executive Council pursuant to Section 10.
 - (e) "Chancellor" means the Chancellor pursuant to Section 17.
 - (f) "Registrar" means the Registrar pursuant to Section 19.
 - (g) "Dean" means the head of a faculty.
 - (h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
 - (i) "Director" means the head of a study center and a base center.
 - (j) "Office Bearer" means the office bearers of the university pursuant to Section 6.

(k) "Academic Council" means the Academic Council pursuant to Section 12.

(l) "University" means the Nepal Open University established pursuant to Section 3.

(m) "Teacher" means a person who imparts education, teaches, or performs or causes to perform academic work specified by the university.

(n) "Faculty" means a faculty pursuant to Section 14.

(o) "Assembly" means the University Assembly pursuant to Section 7. Chapter-2
Establishment of the University

3. Establishment of the University: (1) Nepal Open University is established for the purpose of conducting high-level study, teaching, and research in various subjects through the open education system, as well as for performing related work.

(2) The central office of the university shall be located at any place in Nepal as specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(3) The university may operate its programs within Nepal and, as necessary, outside Nepal as well. 4.

University to be an Autonomous and Corporate Body: (1) The university shall be an autonomous and corporate body with perpetual succession. (2) The university shall have a separate seal for all its acts and business. (3) The university may, like an individual, acquire, possess, sell, or otherwise arrange movable and immovable property. (4) The university may, like an individual, institute and defend lawsuits, and lawsuits may be instituted and defended against the university in the same name. (5) The university may, like an individual, enter into contracts, exercise rights under contracts, and discharge liabilities. Chapter-3
Organization and Office Bearers of the University 5. Organization of the University: (1) The organization of the university shall be as follows, and their collective form shall constitute the university:- (a) Assembly (b) Executive Council (c) Academic Council (d) Faculties (e) Base Centers (f) Study Centers (g) Other bodies as prescribed. (2) All work to be done on behalf of the university shall be done by the organizations referred to in sub-section (1). 6. Office Bearers of the University: The university shall have the following office bearers:- (a) Chancellor (b) Vice-Chancellor (c) Registrar (d) Deans (e) Directors (f) Other office bearers as prescribed. Chapter-4
Formation, Duties, Responsibilities, and Powers of the Assembly 7.

Formation of the Assembly: (1) The university shall have an Assembly as the supreme body. (2) Amended by the Act to Amend Certain Nepal Acts Relating to Education, 2077. The Assembly shall be formed as follows:- (a) Chancellor -Chairperson (b) Member, National Planning Commission (looking after education) -Member (c) Vice-Chancellor -Member (d) Chairperson, University Grants Commission -Member (e) Secretary, Government of Nepal, Ministry of Finance -Member (f) Secretary, Government of Nepal, Ministry of Education, Science and Technology -Member (g) Secretary, Government of Nepal, Ministry of Communication and Information Technology -Member (h) Secretary, Government of Nepal, Ministry of Forests and Environment -Member (i) Secretary, Government of Nepal, Ministry of Agriculture and Livestock Development -Member (j) Two from among the Vice-Chancellors of other universities -Members (k) One from among former Vice-Chancellors of other universities or study institutes established pursuant to the prevailing law -Member (l) One from among the Deans -Member (m) One from among the Directors -Member (n) Two from among the Professors of the university, including at least one woman -Members (o) President of the Non-Resident Nepali Association, or a representative of that association designated by him/her -Member (p) Five persons from among industrialists, businessmen, donors, social workers, or persons who have made

significant contributions to the educational or academic field, including at least two women, ensuring representation from all sectors -Members (q) Registrar -Member-Secretary (3) Until the appointment of the Registrar, the work of the Member-Secretary of the Assembly shall be performed by any member of the Assembly designated by the Chancellor. (4) The nomination of members, other than the ex-officio members referred to in sub-section (2), shall be made by the Chancellor on the recommendation of the Executive Council. (5) The term of office of the nominated members referred to in sub-section (2) shall be four years. (6) If the office of a nominated member is vacated for any reason, another person shall be nominated for the remaining term by completing the process under sub-section (4). 8.

Meeting of the Assembly: (1) The meeting of the Assembly shall be held at least twice a year. (2) The meeting of the Assembly shall be held on the date, time, and place specified by its Chairperson. (3) The Member-Secretary of the Assembly shall give notice to all members, including the agenda of subjects to be discussed in the meeting, at least seven days before the meeting of the Assembly. (4) If more than fifty percent of the total number of existing members are present in the Assembly, the quorum shall be deemed to be complete. (5) The meeting of the Assembly shall be chaired by the Chancellor, and in his/her absence, by the Vice-Chancellor. (6) The opinion of the majority shall prevail in the meeting of the Assembly, and in case of a tie, the person chairing the meeting shall cast the deciding vote. (7) The Member-Secretary shall get the decisions of the meeting of the Assembly certified by the person chairing the meeting and keep them. (7a) Added by the Act to Amend Certain Nepal Acts Relating to Education, 2077.(7a) The Registrar shall keep a record of the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor. (8) Other procedures relating to the meeting of the Assembly shall be as determined by the Assembly itself. 9. Duties, Responsibilities, and Powers of the Assembly: The duties, responsibilities, and powers of the Assembly shall be as follows:- (a) To formulate the policy of the university, (b) To conduct high-level study, teaching, and research programs in various subjects through the open education system, (c) To provide necessary guidance to the various organizations of the university and bodies under them for the management and operation of the university, (d) To determine and award various degrees to be conferred by the university, (e) To approve the plan, annual budget, and program of the university, (f) To approve the rules of the university, (g) To discuss and approve various proposals received in the Assembly, (h) To discuss and pass the annual report and audit report of the university, (i) To give directives to the Executive Council to maintain financial discipline in the university, (j) To perform or cause to perform other work as prescribed. Chapter-5 Formation, Duties, Responsibilities, and Powers of the Executive Council 10.

11. Duties, Responsibilities, and Powers of the Executive Council: The duties, responsibilities, and powers of the Executive Council shall be as follows:-

- (a) To implement or cause to implement the decisions and directives of the Assembly,
- (b) To carry out necessary work to mobilize financial resources required by the university,
- (c) To prepare a draft of rules relating to the university and submit it to the Assembly for approval,
- (d) To submit the posts of teachers and employees required by the university to the Assembly for approval,
- (e) To determine fees to be collected from students, the price of study materials, and fees for services provided by the university,
- (f) To prepare a code of conduct to be observed by the teachers, employees, and students of the university and submit it to the Assembly for approval,
- (g) To monitor or cause to monitor whether the code of conduct under clause (f) is being observed by the teachers, employees, and students of the university, and if found not observed during monitoring, to take action,

- (h) To prepare the policy, annual program, budget, progress report, audit report, and other proposals of the university and submit them to the Assembly for approval,
- (i) To coordinate and inspect the educational programs conducted by the university and submit a report thereof to the Assembly,
- (j) To establish and operate an e-library and museum for the facilitation of study and research,
- (k) To protect, control, manage, and operate or cause to operate the fund and movable and immovable property of the university,
- (l) To accept donations, endowments, and financial assistance received by the university,
- (m) To establish relations with domestic or foreign universities or institutions to conduct educational programs relating to academic, research, and professional development and to mobilize necessary support for that purpose, subject to the policies and programs of the university,
- (n) To appoint and promote teachers and employees of the university as prescribed,
- (o) To form committees, sub-committees, or task forces as necessary for its work,
- (p) To maintain financial discipline in the university and settle or cause to settle irregularities,
- (q) To perform other work as prescribed. Chapter-6

Formation, Duties, Responsibilities, and Powers of the Academic Council

12.

Formation of the Academic Council: (1) The university shall have an Academic Council to function as the body to systematize the educational, academic, and research work of the university. (2) The Academic Council shall be formed as follows:- (a) Vice-Chancellor -Chairperson (b) One from among the Deans -Member (c) One from among the Directors -Member (d) One from among the teachers -Member (e) Two from among experts in subjects relating to open education technology and curriculum -Members (f) Two from among subject matter experts, including at least one woman -Members (g) One from among the Deans or Directors designated by the Vice-Chancellor -Member-Secretary (3) The nomination of members under clauses (b), (c), (d), (e), and (f) of sub-section (2) shall be made by the Chancellor on the recommendation of the Vice-Chancellor. (4) The term of office of the nominated members under sub-section (2) shall be four years. (5) If the office of a nominated member is vacated for any reason, another person shall be nominated for the remaining term by completing the process under sub-section (3). (6) The procedure relating to the meeting of the Academic Council shall be as prescribed, and until so prescribed, such procedure shall be as determined by the Academic Council itself. 13. Duties, Responsibilities, and Powers of the Academic Council:

The duties, responsibilities, and powers of the Academic Council shall be as follows:- (a) To determine the curriculum of the university, (b) To perform or cause to perform necessary work relating to credit transfer and credit accumulation, (c) To formulate and approve policies and programs relating to academic and research matters of the university, (d) To determine the eligibility and basis for admission, method of faculty change, learning evaluation method, and type of examination in various educational programs conducted by the university, (e) To carry out necessary work to maintain educational quality, (f) To recommend to the Assembly for awarding various degrees to be conferred by the university, (g) To determine the equivalence of degrees obtained from other educational institutions, (h) To provide advice to other bodies of the university on academic and research matters, (i) To perform other work as prescribed. Chapter-7 Faculties and Centers

14. Faculties: (1) Various faculties as prescribed shall be established in the university for the purpose of higher education to be conducted. (2) While establishing a faculty pursuant to sub-section (1), the programs to be conducted under the faculty and the number of students shall also be taken as a basis. (3) Other duties, responsibilities, and powers of the faculty shall be as prescribed. 15.

Base Centers: (1) The university shall have base centers for curriculum development, production and transmission of study materials, academic and research work, student contact and counseling, as well as for other prescribed work. (2) The establishment, operation, duties, responsibilities, and powers of base centers shall be as prescribed. 16. Study Centers: (1) The university may operate study centers as required to provide higher education in various subjects. (2) The university may operate a study center outside Nepal with the approval of the Government of Nepal. (3) Other provisions relating to the establishment and operation of study centers shall be as prescribed. Chapter-8 Office Bearers, Teachers, and Employees of the University 17. Chancellor: (1) The Minister for Education, Science and Technology shall be the Chancellor of the university. The Chancellor shall be the Chancellor of the university. (2) The Chancellor shall be the head of the university and the Chairperson of the Assembly. (3) The Chancellor shall chair the convocation ceremony of the university. (4) The Chancellor may, as necessary, inspect the university and give directives to the university. 18. Vice-Chancellor: (1) The university shall have a Vice-Chancellor as the principal office bearer working full-time. (2) The Government of Nepal shall appoint the Vice-Chancellor on the recommendation of the committee under Section 22. (3) The Vice-Chancellor shall have general control over all acts and business of the university, and he/she may issue directives and supervise the work and business of the university. (4) The Vice-Chancellor shall implement or cause to implement the decisions and directives of the Assembly. (5) In the absence of the Chancellor, the Vice-Chancellor shall chair the convocation ceremony. 19. Registrar: (1) The university shall have a Registrar to oversee, operate, and coordinate the financial and personnel administration of the university. (2) The Registrar shall be an office bearer working full-time. (3) The Chancellor shall appoint the Registrar on the recommendation of the committee under Section 22. (4) In the absence of the Vice-Chancellor, the Registrar shall perform the work of the Vice-Chancellor. 20. Dean: (1) Each faculty shall have a Dean to function as the head of the faculty. (2) The Dean shall be an office bearer working full-time. (3) The appointment of the Dean shall be made by the Executive Council. 21. Director: (1) Each center shall have a Director to function as the head of the study center and base center. (2) The Director shall be an office bearer working full-time. (3) The appointment of the Director shall be made by the Executive Council. 22.

Provision Relating to Recommendation Committee: (1) There shall be a Recommendation Committee for making recommendations for the appointment of the Vice-Chancellor and Registrar, comprising the Chairperson of the University Grants Commission as the coordinator, Amended by the Act to Amend Certain Nepal Acts Relating to Education, 2073.the Secretary of the Ministry of Education, Science and Technology, and a woman educationist nominated by the Government of Nepal. (2) The committee under sub-section (1) shall recommend to the Chancellor for appointment to the post of Vice-Chancellor and Registrar from among the following persons who have obtained at least a post-graduate degree from a university recognized by the Government of Nepal:- (a) For the post of Vice-Chancellor, from among renowned educationists who have worked for at least twenty years in the field of teaching or research, (b) For the post of Registrar, from among persons who have worked for at least fifteen years in the field of teaching, research, or administration. (3) The procedure to be adopted by the committee under sub-section (1) while making recommendations for appointment to the post of Vice-Chancellor and Registrar shall be as determined by that committee itself. 23. Service, Conditions, Facilities, and Duties, Responsibilities, and Powers of Office Bearers: (1) The term of office of the Vice-Chancellor, Registrar, Dean, and Director shall be four years. (2) Other duties, responsibilities, and powers, remuneration, facilities, and conditions of service of office bearers shall be as prescribed. 24. Other Office Bearers: (1) The university may have other office bearers as prescribed, in addition to those mentioned in this Act. (2) The appointment, duties, responsibilities, and powers, remuneration, facilities, and conditions of service of office bearers under sub-section (1) shall be as

prescribed. 25. Circumstances for Vacancy of Office: The office of the Vice-Chancellor, Registrar, Dean, or Director shall be deemed to be vacant in any of the following circumstances:- (a) If his/her resignation from the office is accepted, (b) If he/she is convicted by a court on a criminal charge involving moral turpitude, (c) If he/she is removed from office pursuant to Section 26, (d) If he/she dies. 26.

Power to Remove from Office: (1) If one-fourth of the existing members of the Assembly submit a written petition to the Chancellor stating that the Vice-Chancellor or Registrar has failed to fulfill the responsibilities commensurate with his/her office, has not worked honestly, or has not conducted himself/herself in accordance with the office, the Chancellor shall form a three-member investigation committee Amended by the Act to Amend Certain Nepal Acts Relating to Education, 2073.comprising the Secretary of the Ministry of Education, Science and Technology and a member of the University Grants Commission, with a member of the Assembly as its chairperson. (2) The investigation committee formed under sub-section (1) shall conduct necessary investigation into the matter and submit its report to the Chancellor within thirty days. (3) Upon receipt of the report under sub-section (2), the Chancellor shall submit that report to the Assembly. (4) If, during discussion on the report submitted under sub-section (3), the meeting of the Assembly decides to remove the Vice-Chancellor or Registrar from office, the Chancellor shall remove the Vice-Chancellor or Registrar from office. (5) Notwithstanding anything contained in sub-section (4), before removing the Vice-Chancellor or Registrar from office, he/she shall be given an opportunity to present a defense. (6) The procedure to be adopted while investigating charges against or removing from office other office bearers of the university, other than the Vice-Chancellor and Registrar, under sub-section (1) shall be as prescribed. (7) After an investigation committee is formed to investigate any office bearer under this section, such office bearer shall be automatically suspended until the final decision thereof. (8) If the Vice-Chancellor is suspended under sub-section (7), the Registrar shall, and if the Registrar is suspended, any office bearer of the university designated by the Chancellor shall perform the work of the suspended person during the period of suspension. 27. Provision Relating to Teachers and Employees: (1) The university shall have teachers and employees in the required number. (2) The appointment, duties, responsibilities, and powers, remuneration, facilities, and conditions of service of teachers and employees under sub-section (1) shall be as prescribed. (3) If it is not possible to perform any work of the university through the teachers and employees of the university, the Vice-Chancellor may, stating the reason therefor, appoint any expert on a contract basis and engage him/her in the work of the university. (4) The duties, responsibilities, and powers, remuneration, facilities, and conditions of service of the expert appointed under sub-section (3) shall be as mentioned in the contract. Chapter-9 Fund, Accounts, and Audit of the University 28.

Fund of the University: (1) The university shall have its own separate fund, and the following amounts shall be credited to that fund:- (a) Amount received from the Government of Nepal, (b) Amount received from the University Grants Commission, (c) Amount provided as financial assistance by any person or institution, (d) Amount received from any person, body, association, or institution, (e) Amount received from foreign persons, governments, international associations, or institutions, (f) Amount received from fees and any other sources. (2) Before receiving any amount under clause (e) of sub-section (1), the university shall obtain the approval of the Government of Nepal, Ministry of Finance. (3) The amount of the fund of the university shall be deposited by opening an account in any commercial bank designated by the Executive Council. (4) The operation of the fund and account of the university shall be as prescribed. (5) All expenditures of the university shall be borne from the fund under sub-section (1). 29. Accounts and Audit: (1) The university shall maintain accounts of its income and expenditure according to the accounting system adopted by the Government of Nepal. (2) The university shall maintain an internal control system as prescribed. (3) The audit of the university shall be conducted by the Auditor General. Chapter-10 Miscellaneous 30. Teaching Method

and Evaluation of Educational Program: The provisions relating to the teaching method of the educational program conducted by the university and the evaluation of the learning achievement of students in such educational program shall be as prescribed. 31. Award of Certificates and Degrees: The university may award certificates and degrees as prescribed to students, trainees, or researchers who have attained higher education in prescribed subjects, and may award honorary degrees to persons conducting research work and commendable work in the academic field. Amended by the Act to Amend Certain Nepal Acts, 2062.32. Granting Recognition: The university may grant recognition to the academic degrees of other universities or educational institutions. 33. Eligibility Required for Admission to the University: The eligibility of students or researchers required for admission to the university shall be as prescribed. Added by the Act to Amend Certain Nepal Acts Relating to Education, 2073.33a.

Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, marginalized, disabled, and economically disadvantaged students who have met the criteria prescribed by the university and are admitted to the university or its constituent and community educational institutions under its purview. (2) For the purpose of sub-section (1), the basis, criteria, classification, and other related provisions shall be as specified by the Government of Nepal by publishing a notice in the Nepal Gazette. (3) Amended by the Act to Amend Certain Nepal Acts, 2062. The facility under sub-section (1) may be availed by a student only once at each level. (4) Notwithstanding anything contained in the prevailing law, seats shall be reserved as prescribed for Dalit students for admission to technical and vocational higher education. (5) The university shall make provision for higher education for the sons and daughters of martyrs, disappeared persons, and persons with disabilities as provided in the prevailing law. (6) A student who has studied in a community school from grade six to grade ten shall receive a scholarship in higher education according to the prevailing law. 34. May Use Structure of Other Institutions or Bodies: The university may use the structure of other institutions or bodies for conducting any educational program, subject to the approval of such body or institution. 35. May Close Faculty, Base Center, or Study Center: If any faculty, base center, or study center established under this Act is found to be not justified or not necessary, the Assembly may close such faculty, base center, or study center. 36. To Act in Accordance with National Education Policy: It shall be the duty of the university to act in accordance with the national education policy of the Government of Nepal. 37. Acts and Business Not to be Invalidated: No act or business of the university involving any office bearer or member shall be invalidated only by reason of the vacancy of the seat of any office bearer or member of the university or any defect in the appointment or nomination of any office bearer or member. 38. Protection for Acts Done in Good Faith: No legal proceedings or other actions shall be instituted against the university or any office bearer of the university in respect of any act done or intended to be done in good faith pursuant to this Act or the rules made under this Act. 39.

Delegation of Powers: (1) The Assembly may, as necessary, delegate some of the powers conferred on it pursuant to this Act or the rules made under this Act to the Executive Council or the Academic Council. (2) The Executive Council may, as necessary, delegate some of the powers conferred on it pursuant to this Act or the rules made under this Act to any office bearer of the university. (3) The Academic Council may, as necessary, delegate some of the powers conferred on it pursuant to this Act or the rules made under this Act to the Vice-Chancellor, Registrar, or Dean. 40. Contact with the Government of Nepal: The university shall contact the Government of Nepal through Amended by the Act to Amend Certain Nepal Acts Relating to Education, 2077. the Ministry of Education, Science and Technology. 41. May Grant Exemption to the University: The Government of Nepal may grant exemption from taxes and customs duties applicable pursuant to the prevailing law while importing necessary materials or purchasing land for the university. 42. Provision Relating to Dissolution of the University: (1) If the university fails to operate for any reason, the

Government of Nepal may dissolve the university on the recommendation of the Assembly. (2) If the university is dissolved under sub-section (1), all movable and immovable property of the university shall vest in the Government of Nepal. 43. Power to Make Rules: The university may make necessary rules for the implementation of this Act.